

		Responding party Plaintiff to give notice.
12	Kaneshiro vs. City of Fullerton 2024-01372395	Motion for Determination of Good Faith Settlement Cross-Defendant Louise Jenkins' Motion for Determination of Good Faith Settlement is CONTINUED to 06/02/2025 at 01:45 PM in Department C15. This Motion has previously been continued twice and a prior motion for determination of good faith settlement was denied due to Cross-Defendant failing to provide sufficient evidence of the proportion of liability and her financial condition. Most recently on 2/3/25, the Court continued the Motion to allow the City to conduct discovery regarding Cross-Defendant's financial condition, specifically related to her rental income and equity in a Pomona house. Cross-Defendant has not filed any new papers since the last hearing. The City filed an opposition and declaration. Cross-Defendant's deposition was noticed for 4/22/25 including requests for discovery regarding her financial condition. (Gridley Decl., Ex. 5.) Neither party has submitted any expert testimony regarding each parties' proportionate liability. The City submitted the police report as part of Gridley's declaration; however, the police report is not sufficient evidence on which to base a determination of liability. Moving party may submit any additional evidence including evidence regarding her claims of each parties' proportionate liability by 5/12/25. Any opposition including evidence regarding financial condition and claimed proportionate liability is due by 5/19/25. Moving party to give notice.

13	Carrillo vs. Regents of The University of California 2024-01378003	Motion for Summary Judgment and/or Adjudication Defendant The Regents of the University of California’ Motion for Summary Judgment or, in the Alternative, Motion for Summary Adjudication of Issues is CONTINUED to 10/20/2025 at 01:45 PM in Department C15. If the opposing party does not make the requisite showing for a continuance pursuant to <i>Code of Civil Procedure</i> section 437c(h), the court may still grant a continuance in its discretion where good cause is shown. <i>Lerma v. County of Orange</i> (2004) 120 Cal.App.4th 709, 716; <i>Johnson v. Alameda County Med. Ctr.</i> (2012) 205 Cal.App.4th 521, 533. Instead of filing an opposition, Plaintiff’s counsel filed a request for a continuance. The reason for the request is that there has been a breakdown in the attorney-client relationship due to Plaintiff’s counsel’s inability to communicate with Plaintiff and, as a result, counsel filed a Motion to be Relieved as Counsel on 2/18/25, which is scheduled to be heard on 8/11/25. Plaintiff’s counsel therefore requests the Court continue the hearing date on Defendant’s Motion for Summary Judgment to 11/21/25, or a date thereafter, so that Plaintiff may be afforded time to retain new counsel and enable new counsel to come up to speed with the facts of this case and meaningfully oppose Defendant’s Motion for Summary Judgment. In response, Defendant filed an objection to the request arguing Plaintiff’s counsel has shown no activity or intent to have the Motion to Be Relieved heard on an earlier date by filing an <i>ex parte</i> application to advance the hearing on the Motion to be Relieved to an earlier date and has improperly waited until just before Plaintiff’s Opposition papers are due to instant motion to file this requested continuance. Defendant also argues the notice is improper because it was filed without giving adequate notice to the defense. Defendant also complains Plaintiff’s counsel did not provide appropriate facts to support the requested continuance. The timeline of relevant events is as follows: --08/22/24 Plaintiff deposed and represented by counsel --01/28/25 MSJ filed --02/18/25 Motion to be Relieved filed --04/01/25 Continuance request filed
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